Disciplinary Policy Global

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HCLTech

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Scope

- This policy is a subset of the COBEC Policy.
- COBEC addresses business ethics and conduct for all HCLTech stakeholders.
- This policy primarily covers actions against all types of employees (Permanent, Temporary, Trainees, and Interns).
- The policy applies to all employees of HCL Technologies Ltd, its subsidiaries worldwide.

Scope

This policy is applicable to all employees on the rolls of the HCL TECHNOLOGIES - DPO, Northern Ireland.

Scope

This policy applies to all employees, including permanent, fixed-term, casual, temporary, and agency workers. Probationary employees are excluded, and failure to pass probation may lead to termination. Agency workers must follow Company policies, but disciplinary actions are handled by their agency.

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Policy Statement

HCLTech prioritizes discipline to enhance employee morale and productivity to achieve company objectives. All employees are expected to meet performance standards and conduct themselves in line with the company's values, ethics, and business principles.

Improper conduct includes actions conflicting with company policies, employment terms, and information security processes.

This policy does not alter employment nature as per law and allows termination with or without cause or notice in compliance with governing law and procedures.

Disciplinary Action

Appropriate disciplinary action will be taken against any employee who:

- Violates company policies, procedures, or employment terms and conditions
- Fails to prevent or report violations or approves a violation through lack of diligence in supervision
- Retaliates or encourages retaliation against an employee who reports potential violations
- Is involved in serious misconduct with direct client, business, or regulatory impact

Benefits of Disciplinary Action

Besides the benefit where the disciplinary action helps an employee to get back on track,the following are the intended benefits of the disciplinary Actions:

- Early intervention to correct employee behavior
- Improved communication between managers and employees
- Enhanced employee morale
- Ensuring consistency and fairness in addressing employee issues

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*Please refer **Exhibit A** for - An indicative list of unacceptable activities*

*Please refer **Exhibit B** for - Information Security violations and related actions that will be taken*

Exhibit A: An indicative list of unacceptable activities

An indicative list of unacceptable activities has been listed below; the disciplinary action taken against the Employee may vary considering high or low impact of a violation or the local laws and regulations. Local HR policies or work rules may contain additional or different unacceptable activities that will subject an Employee to discipline under this Policy.

For example - an office pen being stolen from office can be treated as minor violation with low impact while forging documents will be treated as major violation with high impact. Any kind of violation will lead to appropriate disciplinary action subject to local laws, work rules and regulations.

Zero Tolerance

- Willful violation of Company Policies or Procedures detrimental to HCLTech's profitability, ethics, or lawful operation.
- Being intoxicated or under the influence of alcohol or drugs, excluding prescribed medications that do not impair work performanceUnauthorized possession of dangerous or illegal firearms, weapons, or explosives on Company premises or while on duty.
- Breaching non-disclosure agreements by disclosing confidential HCLTech information to unauthorized parties.
- Engaging in immoral conduct, indecency, or gambling on Company premises
- Making unwarranted, disparaging, or unsubstantiated comments against HCLTech, its Directors, Managers, or Customers in any form or media Malpractice related to service level agreements with clientsEngaging in criminal conduct, violence, or making threats of violence on Company premises or when representing HCLTech
- Accessing, storing, or transmitting pornographic content in any form
- Violations of local laws, regulations, or company policies
- Actions detrimental to workplace safety, integrity, or productivity
- Any behavior inconsistent with company values or ethical standards
- Harassment, discrimination, or other forms of misconduct

Client/Customer Violation

Failure to adhere to client processesDamaging client property at client sitesImplementing changes without following change management processes as defined by the client, or neglecting to implement changes altogetherFalsifying metrics, such as client satisfaction, either in front of clients or internallyInappropriate communication with clientsConsistently receiving dissatisfactory feedback from clients

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Negligence / Staffing Refusal / Non – Performance

Negligence or careless actions endangering the life or safety of othersUnsatisfactory work or failure to meet production or quality standards as per company processesManagerial negligence in supervision or failure to prevent or report violations by subordinatesAttempting to conceal poorly executed changes or issues caused by changesIndiscipline during production, such as sleeping during work hours, taking unscheduled breaks, or arriving late or leaving early without approvalUnlawful cessation of work, refusal to work, or engaging in unauthorized strikes in violation of law or work slowdowns, stay-in-strike or any form or any other action that does not have the protection of local laws (for example, go slow is not a contract termination action in Mexican Labor Law)Participating, inciting, or instigating illegal strike actions or disruptionsDelaying or stopping work during scheduled working hours

Misconduct

- Dishonesty, including falsification or misrepresentation on employment applications or records, providing false information about sick leave or personal leave, altering company records or documents
- Theft of company property or property belonging to fellow employees, unauthorized possession or removal of company or client property without permission, unauthorized use of company equipment for personal reasons.
- Harassment, including sexual harassment, racial abuse, or discrimination
- Offensive or inappropriate references to race, ethnicity, religion, gender, lifestyle, sexual orientation, disability, or age.
- Failure to report damage to company assets, soliciting, selling merchandise, or collecting funds during working hours
- Threatening, intimidating, or coercing fellow employees on or off the premises.
- Smoking in restricted areas or outside designated times
- Any departure from accepted conventional modes of dress or personal grooming; wearing improper or unsafe clothing
- Failure to report absences or tardiness, excessive absences or tardiness
- Use of obscene or abusive language toward managers, employees, clients, vendors, or others associated with the company
- Retaliation in any form, against employees who report potential violations
- Sabotage or willful destruction of company property or property belonging to others
- Marking attendance dishonestly or on behalf of others
- Making indecent remarks within company or client premises or outside or in the transport of the Company/ Client
- Involvement in activities in violation of the COBEC
- Demanding, offering, or accepting bribes or illegal gratuities
- Committing offenses involving moral turpitude punishable under local law
- Unauthorized use of bulletin boards or posting notices in unauthorized places
- Employees changing their designated work location without proper and prior approval from BU / RM / HR partner.

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- Reluctance, negligence or ignorance shown by employee in completing organization mandated trainings and assessments, despite written reminders and improvement plans.

Insubordination

- Insubordination, including refusal to obey instructions issued by a manager regarding the employee's work or refusal to assist with a special assignment
- Disrespect, disobedience, or insult towards a superior or manager, whether individually or in combination with others, including the use of impertinent language or indecent behavior
- Insubordination towards clients or their representatives, whether on or off the floor, or with any HCLTech Management Representative

Disciplinary action taken against an employee may vary based on the impact of the violation and local laws and regulations. All violations will result in appropriate disciplinary action, in accordance with local laws, work rules, and regulations

Exhibit B: Information Security Violation

Category	**Disciplinary Incident**
Password Confidentiality Violation	Sharing of Passwords and Tokens
	Storing Passwords in Clear Text in HCLTech/ Client assets (Share Drive/ Laptop etc.)
	Storing Passwords in Clear Text in Physical Form (Sticky/ Paper/ Notepad etc.)
	Non-Compliance to Credentials/ password related security policies (HCLTech/ Customer)
	Attempt to Identity Theft/ Compromise

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Failure in implementing Baseline security Controls	Failure in implementing MFA, SSO as per HCLTech/ Customer policies
	Failure in implementing Vulnerability/ Patch Management process
	Failure in System/ Application Hardening
	Failure in implementing HCLTech/ Customer's IT or Security Policies for a secured IT environment
Failure in securing System / Application environment	Attempts resulting in Compromise/Hack of HCLTech / Customer systems
	Misuse of admin/ special privilege provided/ UNAUTHROISED ATTEMPT FROM AN AUTHORISED PERSONAL
	Hosting an unsecured service/application/API/ Infrastructure/ VM asset against HCLTech/ Customer's IT or Security Policies
	Modifications in an application/ API/ Infrastructure/ Service against HCL/ Client IT or Security Policies
	Downloading and Installing unauthorized software
	Failure in Infrastructure/ VM/ Application/ API/ Service Hardening against HCL/ Client IT or Security Policies
Sensitive Information Disclosure	Posting Confidential/ Business related HCLTech / Customer Information on Internet/ Public Cloud/ GitHub

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	Sending Confidential/ Business related HCLTech / Customer information to Public / Personal/ Competitor / External email domain
	Copying Confidential/ Business related information to unapproved storage media
	Sending emails from client domain to HCLTech domain against client policy
	Disclosure of Confidential/ Business related HCLTech/ Customer's information to unrelated party
	Usage of Personal Computers/Devices for Business Purpose against HCLTech/ Customer's IT or Security Policies
	Creating/accessing unauthorized file shares in HCLTech/ Customer environment
	Non-Compliance to Data Security/ Privacy policies (HCLTech/ Customer)
Behavioural Security Violation	Failure in completing Information Security Trainings
	Downloading/Accessing / Storing / Transmitting pornograpic contents
	Storing / Downloading of music(mp3), videos, movies, IPR Content, video games (.exe files), personal function images on HCL/client provided workstations

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	Failure in practising security standards and processes leading to compromise of security or data loss from Social engineering/ Deepfake attempts
	Sending SPAM to colleagues in HCLTech/ Customer domain promoting a survey/business
	Failure in practicing information security for business conduct as per Security/ Acceptable Use Policy
Physical Security Violation	Carriage/ attempt of unauthorized storage media like USB drives, personal laptops, HardDrive etc. in HCLTech/ Customer premises without explicit approval
	Sharing of Access cards
	Leaving access cards, tokens and other critical information on desk - unattended
	Tailgating
	System left unattended
	Failure in practicing Physical security practices for business conduct as per HCLTech/ Customer's policies
	Permitting Friends & Visitors inside ODC without authorization

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	Photography inside ODC and restricted areas
Asset Loss	Asset Loss (HCLTech/ Customer's IT Hardware assets)
	Theft of HCLTech/ Customer's IT Hardware assets
Other misconduct which may evolve in the future	Any act or deed which may endanger to Company's data, Application, Client, System, Assets or may cause the reputational and financial loss to the Company and its clients

.This list is indicative and not exhaustive.Any other disciplinary incident, security breach, or violation not listed above will be evaluated for its seriousness and impact for appropriate disciplinary action.**For any information violation, please contact Infosecincidents@hcltech.com.** The disciplinary action may also be initiated against the auto raised DLP incidents.

In cases of improper conduct or performance issues, the company will:

Initiate corrective action when appropriate.Provide the employee with a fair opportunity to be heard and make decisions based on relevant evidence.Maintain confidentiality throughout the process.Take action as quickly as reasonably possible.Advise the employee about the nature of the complaint.Prefer sanctions other than dismissal for a first breach of discipline, except in cases of gross misconduct.Implement the disciplinary procedure at any stage if warranted by the employee's alleged behavior.

In instances of zero tolerance incidents, disciplinary recommendations must specify the source of information and any previous instances of non-compliance.

The Table of Penalties (in the Annexure section) is indicative and serves as a guideline, not exhaustive in nature.

Note: The Information security violations and the consequence guidelines and disciplinary actions to prevent such violations are common and as per the Table of Penalties of all Geos, rule book, advisory which are listed in the Annexure section below.

This guidance is subject to local law and may be changed from time to time at the discretion of the management. This guidance should be applied, and decisions may be taken after careful consideration of facts and circumstances of individual cases and in consultation with the Legal Team. Any other Disciplinary Incident/

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Security Breach or other violation not listed in the attached list (in the Form section) will be evaluated for its seriousness and impact for appropriate disciplinary action. Any exception to these offences will have to be approved by CPO only and by DAC for incident related to information security violation.

Disciplinary Actions Committee (DAC) framework is established to govern, review and approve exceptions (if any).

Policy Statement

Objective

The purpose of this Policy is to provide a framework on Disciplinary Procedures.

Policy Details

HCL TECHNOLOGIES UK Ltd. believes that discipline is essential for improving Employee morale as well as to increase the productivity, which is the ultimate goal. It is of the utmost importance for there to be a harmonious working environment to help achieve Company's objectives. At HCL TECHNOLOGIES UK Ltd., all Employees are expected to meet certain performance standards and to conduct themselves, personally and professionally, in line with the Company's values, ethics and business principles.

For the purpose of this Policy, the term improper conduct in this Policy is means any act or omission on the part of an Employee that is in conflict with:

- Policies and procedures of the Company
- Employment terms and conditions
- Information Security Process

Management can choose to deal with minor instances of misconduct [and initial unsatisfactory levels of performance] informally, by way of counselling, guidance or instruction or by informally cautioning the employee via recorded discussion.

If a problem continues and management judges it to be serious, these procedure will apply.

The Company will not dismiss any Employee for a first offence, unless the offence amounts to gross misconduct in which case the employee will be dismissed without notice or pay in lieu.

The Company will not take any formal disciplinary action under this procedure without:

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- Having carried out a prompt investigation. The Company will inform the Employee whether any meeting he/ she is asked to attend is investigatory or disciplinary;
- Giving or sending the Employee a letter setting out the complaint made against him or her and possible outcomes of the disciplinary meeting. The letter will also inform the employee that he or she must attend a disciplinary meeting to discuss the matter and confirm the time, date and location of that meeting. Any employee who has difficulty understanding such a letter should ask H R for an explanation
- Before the meeting, providing the employee with relevant evidence.
- Giving the Employee, together with any permitted companion a reasonable opportunity to consider his or her response to that information;
- Explaining the Company's case at the meeting and giving the employee an opportunity to put his or her case in respect of the allegations made.
- Employees have the right to appeal against any formal action taken against them under the procedure.
- Depending on the seriousness of the misconduct, or performance or the employee's disciplinary record taken as a whole, Verbal or First Written of the procedure may be omitted.
- Depending on the circumstances, it may be appropriate to suspend the employee from work on full pay to enable the investigation to take place. Suspension on full pay does not amount to a disciplinary sanction.
- The Company has other policies which are relevant to disciplinary matters, such as [the harassment/dignity at work policy, COBEC and ABAC, Anti money laundering policy, Business gifts and entertainment policy, conflict of Interest policy, the health and safety policy, the internet and email policy and any other related polices that may be rolled out in the Company from time to time. This procedure should be read as incorporating provisions relating to discipline in any other Company policies, which are stored on the HCLTech Intranet.
- Each stage of this procedure will be carried out without unreasonable delay.
- The Company will keep records of any action taken under these disciplinary procedures. These will be treated as confidential.

Conduct of meetings under the procedure, including appeals

- All disciplinary meetings, including appeals, will be held at a reasonable time and place. An Employee who has been invited to attend a disciplinary meeting must take all reasonable steps to attend the meeting.
- In any disciplinary proceedings under the procedure, including appeals, an employee has the statutory right reasonably to request to be accompanied by a fellow worker or trade union official of his or her choice. The companion may address the hearing to put the employee's case, sum up his or her case or respond on the employee's behalf to any view expressed at the meeting. He or she may also confer with the Employee during the hearing, but does not have the right to answer questions on his or her behalf, address the hearing if the employee does not want him or her to or prevent anyone, including the employee, from making his or her contribution to the hearing.
- The appropriate level of management will conduct meetings. At the meeting, the Company will explain the role of all those attending on its behalf. The Company will then explain its case against the employee and will give the employee the opportunity to respond in full. At appeal meetings, the Employee will present his or her reasons for appealing the decision and the Company will consider these.

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- If matters come to light during a disciplinary meeting which require further investigation, the Company may at its discretion, adjourn any disciplinary meeting to enable further investigation to be carried out.

Possible Outcomes of a Disciplinary Meeting

The Company may issue a verbal warning if the employee's conduct or performance does not meet the Company's standards.

A Verbal Warning may be issued by a Team Leader. Where, at the conclusion of the disciplinary meeting, the manager decides to issue such a warning, he or she will inform the employee of the following.

- The reason for the warning
- That it is the first stage of the Company's disciplinary procedure;
- The action or improvement (if any) which he or she requires of the employee;
- If appropriate, the timescale for implementing any such action;
- The consequences for the employee of not implementing required action or of further misconduct;
- When the warning will cease to have effect, subject to satisfactory conduct or performance. This will normally be 6 months. An extended period may be stated in exceptional cases;
- The right of appeal.

All of these matters will be confirmed to the employee in writing via a warning receipt form.

First Written Warning: The Company may issue a First Written Warning if:

- The required improvement is not achieved within any timescale stated in the first warning;
- Further misconduct or poor performance takes place during the currency of Verbal Warning, whether or not involving a repetition of the conduct or poor performance which was the subject of the first warning;
- The seriousness of the misconduct or poor performance merits it, regardless of whether a Verbal Warning has already been issued.
- A First Written Warning may be issued by a Team Leader and where, at the conclusion of the disciplinary meeting, the manager decides to issue a First Written Warning he or she will inform the employee of:
    - The reason for the warning, including any prior warning(s) taken into account;
    - That it is the second stage of the Company's disciplinary procedure;
    - The action or improvement (if any) which he or she requires of the employee;
    - If appropriate, the timescale for implementing any such action;
    - The consequences for the employee of not implementing the required action or of further misconduct, which could be a final warning;

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- When the warning will cease to have effect, subject to satisfactory conduct or performance. This will normally be after 12 months but a longer period may be stated in exceptional cases;

All of these matters will be confirmed to the employee in writing via a warning receipt form.

Final Written Warning: The Company may issue a Final Written Warning if:

- The required improvement is not achieved within any timescale stated in a second warning; or
- Further misconduct or poor performance takes place during the currency of a First Written Warning, whether or not involving a repetition of conduct or poor performance which was the subject of a previous warning
- The seriousness of the misconduct or poor performance merits it, regardless of whether it has issued any previous warnings.

A Final Written Warning may be issued by a Team Leader, or Onsite HR or a Senior Team leader (or person at this grade or above). As with Verbal and First Written Warnings, where, at the conclusion of the disciplinary meeting, the Manager decides to issue a final warning he or she will inform the employee of:

- The reason for the final warning;
  - The action or improvement (if any) which he or she requires of the employee;
  - If appropriate, the timescale for implementing any such action;
  - The fact that this is a final warning and that the next stage of the procedure will be dismissal;
- When the warning will cease to have effect, subject to satisfactory conduct or performance. This will normally be after 12 months but a longer period may be stated in exceptional cases
- The right of appeal.

All of these matters will be confirmed to the employee in writing via a warning receipt form.

** In exceptional circumstances a Final Written Warning may be extended by 12 months. The second Final Written Warning is applied immediately, and ends 12 months later.

Dismissal: The Company may dismiss an employee where:

- The required improvement is not achieved within any timescale stated in a final warning;
- Further misconduct or poor performance takes place during the currency of a final warning – whether or Not involving a repetition of conduct or poor performance, which was the subject of a previous warning;
- Or it is reasonably believed that he or she has committed an act of gross misconduct.

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- Unless dismissal is for gross misconduct, the Employee will be dismissed with notice.
- Only a Senior Manager or HR Manager level may dismiss an Employee, with the exception of continued poor timekeeping or continued poor attendance/performance or AWOL which a Team Leader, HR Champion or an HR Officer can chair. An employee will only be dismissed after he or she has received a written invitation to a disciplinary hearing and the disciplinary hearing has been held. Where the decision is taken to dismiss the employee, the Chair of the meeting will state the reason, the date on which the dismissal takes effect and inform the employee of his or her right to appeal as soon as possible after the end of the disciplinary meeting, or if not, as soon as reasonably practicable. These matters will be confirmed in writing.
- In exceptional circumstances, the Company may seek the employee's agreement to demotion or suspension without pay or other penalty as an alternative to dismissal. Where it is deemed appropriate, a final warning may also be issued or continued in force.

AppealAny employee who is dissatisfied with a disciplinary decision taken in respect of him or her may appeal against that decision. Appeals should be in writing, setting out the reasons for the appeal, and should be delivered to HR within five working days of the disciplinary decision. The Company will then invite the employee to an appeal meeting, which will normally take place within five working days. The appeal meeting may take place after the disciplinary decision has taken effect.

- Where an employee has been dismissed, a senior manager (senior to the one who had made the original disciplinary decision) will normally hear the appeal.
- Wherever possible, the decision on the appeal will be communicated to the Employee in writing within five working days of the hearing. The decision is final.

Gross Misconduct

The following are examples of conduct falling within the definition of gross misconduct which entitles the Company to dismiss without notice or payment in lieu:

- Theft, fraud, deliberate falsification of records
- Fighting, assault, verbal abuse
- Unauthorized Absence from place of work (AWOL)
- Possession or misuse of unlawful drugs/substances within Company premises or at Company function
- Being unfit for work through drugs, alcohol or substances/ Incapability through alcohol or being under the influence of illegal drugs
- Drug trafficking
- Any activity that does or is likely to bring HCLTech's reputation into disrepute
- Any activity which could jeopardize HCLTech / client relationship

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- Serious breach of trust and confidence
- Gross negligence in carrying out work responsibilities (e.g.: deliberately releasing / abandoning calls, conduct in dealing with customers leading to grossly unsatisfactory customer service)
- Deliberate and serious damage to the Company's property
- Serious insubordination
- Serious breach of health and safety rules
- Breach of HCLTech security policy
- Serious breach of the Email, Internet and Monitoring Policy
- Serious breach of the Social Media Policy
- Serious criminal offences committed against HCL TECHNOLOGIES
- Serious criminal offences not arising from employment but which make the individual unsuitable or HCL Technologies Ltd employment
- Serious cases of unlawful discrimination and harassment
- Obscene, malicious, nuisance, or indecent communications
- Serious breach of HCL TECHNOLOGIES Internet/Intranet/E-mail/ Social Media policies (e.g. downloading and/or distributing offensive material, sending inappropriate emails, publishing inappropriate communications via social media)
- Unauthorized disclosure of customer or other sensitive HCL Technologies Ltd info
- Unauthorized access or aiding and abetting unauthorized access to computer records for the purpose of either reading or modification (serious breach of security policy)
- Serious breaches of the rules regarding the use of HCL TECHNOLOGIES service lines /HCLTech business equipment mobile phones
- Willful cases of giving unsubstantiated, misleading or inaccurate information about HCL Technologies Ltd and its competitors to the public or outside organizations to the likely detriment of HCL TECHNOLOGIES' reputation as a fair-trading company
- Unauthorized possession of a mobile phone on the operational floor.
- Serious Breaches of the Dignity of work Policy

** The above list is not exhaustive. It illustrates the type of conduct that normally merits dismissal for a first offence.

If the Company is satisfied, following investigation and a disciplinary meeting, that the employee has committed gross misconduct, the Company will normally dismiss the employee without notice or pay in lieu.

In some circumstances, issuing a Final Written Warning, demotion (or both Final Written Warning and demotion) and suspension without pay may be used as alternative sanctions.

Other Misconduct or Poor Performance

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In other cases coming within the ambit of this procedure, there will be no dismissal for a first offence. Instead, the Company may issue a formal warning to an employee, which may be a Verbal, First Written or Final Warning, as appropriate. Other sanctions that may be considered including extension of a Final Written Warning, disciplinary transfer, suspension from work and downgrading i.e. demotion. The following list is not exhaustive but provides examples of such misconduct:

- Unauthorized absence
- Failure to adhere to HCLTech absence reporting procedure
- Poor time-keeping
- Abuse of bay rules
- Breach of dress code policy
- Breach of health and safety rules
- Poor performance / Producing sub-standard work
- Offensive behavior
- Insubordination
- Failure to obey no-smoking rules
- Gambling at work
- Repeated acts of minor misconduct

Appeal

Employee has right to appeal against the decision in writing to HR with some proofs to support his Absence within 5 working days of receiving the company decision.

Policy Statement

Objective

HCL Insurance BPO Services Limited ("HCLTechIBS" or "the Company") is committed to dealing with disciplinary offences in a manner that is fair and consistent. The Company procedures are a means of encouraging the improvement of unacceptable conduct, rather than simply imposing sanctions; with the exception of gross misconduct.

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This policy and procedure is non-contractual and may be amended or withdrawn at HCLTechIBS' discretion.

Purpose

This Disciplinary Procedure encompasses the procedures that will be followed when the Company has to consider dismissing an employee or taking other action short of dismissal in respect of disciplinary matters. It has been written to ensure that the ACAS Code of Practice on Disciplinary and Grievance Procedures and
the SMCR requirements are adhered to.

The purpose of this policy is:

- To help encourage employees to achieve and maintain the expected standards of behaviour, conduct, attendance and job performance through a clear disciplinary process.
- To provide written information for employees about disciplinary rules and procedures, as required by law.
- That both the Company and its employees should act consistently, should raise and deal with issues promptly, and should not unreasonably delay meetings, decisions, or confirmation of those decisions.

There are a number of situations where dismissal is not a disciplinary sanction but a consequence of other circumstances. Obvious examples of this are:

- Ill-health
- Redundancy
- Non-renewal of a fixed term contract
- Other substantial reasons relating to the operation of the business

This Procedure does not relate to circumstances such as these, for which a different procedure may be used.

The Company will consider whether matters can be dealt with on an informal basis, but where formal action is considered appropriate, this Procedure will apply.

The Procedure includes disciplinary situations where:

- dismissal is contemplated as a potential disciplinary sanction if allegations are upheld; and
- dismissal is not contemplated at that stage, but another disciplinary sanction may be applied if allegations are upheld.

Where dismissal is being contemplated by the Company or where the Company considers that dismissal may be the potential outcome of a disciplinary process, the Company will notify the employee of this at the earliest appropriate stage.

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If the Company considers that an employee's conduct may amount to gross misconduct, the employee should be aware that dismissal is a sanction which will be contemplated by the Company. Please refer to Appendix 1.

If, during the course of a disciplinary process, a grievance is raised by an employee that relates to the disciplinary process or disciplinary action or constitutes an appeal against a disciplinary decision, the grievance can in most circumstances be dealt with concurrently in the context of the disciplinary proceedings or appeal. In these circumstances there is no need for the company or the employee to follow the Grievance Policy.

This procedure is referred to in the contract of employment, but is not contractual. The Company may amend this procedure at any time. The Company may also vary this procedure, including any time limits, as appropriate in any case.

Conduct Rules

Number	Rule	Examples (this list is not exhaustive)
1	You must act with integrity	• Misleading (or attempting to mislead) a customer, the firm or the regulator • Falsifying documents • Misleading a customer about investment risk, charges, surrender penalties or providing inappropriate projections • Destroying documents • Preparing inaccurate records, for example training records, qualifications, past employment record or experience. • Acts, omissions or business practices that could be reasonably expected to cause customer detriment.
2	You must act with due care, skill and diligence	• Failing to explain the risks of an investment to a customer • Failing to disclose details of charges/surrender penalties • Managers who fail to take reasonable steps to ensure the business is controlled effectively or that any delegation of responsibilities is to an appropriate person and overseen effectively • Managers who permit transactions without a sufficient understanding of the risks involved
3	You must be open and cooperative with the FCA, the PRA and other regulators	• Failing to supply a regulator with appropriate documents upon request and within timescales
4	You must pay due regard to the interests of customers and treat them fairly	• Failing to inform the customer of material information which they should be aware of, for example investment risks or surrender penalties • Failing to acknowledge, or seek to resolve, mistakes in dealing with customers • Failing to provide terms and conditions to which a product or service is subject in a way which is clear and easy for the customer to understand.
5	You must observe proper standards of market conduct	• Manipulating or attempting to manipulate a market

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Responsibilities

Directors and Senior Management (SMCR holders and others)

To ensure that they adhere to the terms of the Company Disciplinary Procedures, apply them in a consistent manner and ensure that managers receive support to implement the procedures including relevant training.

Line Managers

All Company managers are responsible for following the Company's Disciplinary Procedures, communicating the procedures to their line reports and team and acting in a professional manner when dealing with disciplinary matters and addressing the relevant issues.

Employees

All employees are responsible for following the terms of the procedures and acting in a professional manner during any disciplinary process.

Procedure

General Information

Each case should be reviewed in the light of the individual circumstances involved.

Management reserves the right to commence proceedings at any stage of the disciplinary procedure depending on the nature of the incident/issue.

Levels of responsibility

The Company takes management of the disciplinary procedure very seriously, and has therefore set out expectations concerning the minimum level of responsibility required to be involved in managing different stages of the procedure.

Human Resources must be involved to provide advice throughout all stages of the disciplinary procedure.

The levels of management required to hold disciplinary meetings are laid out in the table below:

Stage of the Disciplinary Procedure	Level of management required to hold meetings
Investigation	First Line Manager
Suspension	First Line Manager
Disciplinary Hearings for misconduct offences (up to Final Written Warning)	First Line Manager
Disciplinary Hearings for misconduct offences (which may result in dismissal)	First Line Manager & HR Business Partner
Disciplinary Hearings for gross misconduct offences	First Line Manager & HR Business Partner

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All proposals for dismissals must be approved by the Director - HR or their deputy prior to the decision being finalized.

Stages of Disciplinary

Stage 1	Investigation
Stage 2	Meeting and Outcome
Stage 3	Appeal

Investigation

In most cases, an investigation will be the first step taken by the Company. Where investigation is appropriate, no meeting to consider disciplinary action or dismissal will take place until the circumstances surrounding any allegation have been fully investigated to the extent necessary by the Company.

The employee may be asked to assist in any investigation. If the employee is asked to assist, they must co-operate fully and promptly with the investigation. This will include informing the Company of the names of any relevant witnesses, disclosing any relevant documents and attending investigative interviews if the Company considers it appropriate or necessary.

Where practicable, in misconduct cases, different people will carry out the investigation and disciplinary meetings. An investigation may conclude that no further action is required or that the matter can be satisfactorily resolved informally.

The Company reserves the right where appropriate to suspend the employee on their basic salary while investigations and this Procedure are completed, for such period as it considers appropriate. However, the Company will endeavor to keep this period as brief as possible and will keep the suspension under review.

Depending on the merits of the individual cases, suspension may need to be reported to the FCA.

Please note there is no statutory right to be accompanied at an investigation meeting.

Letter inviting employee to a meeting

Where it has been decided that formal disciplinary action is justified, the employee will be required to attend a disciplinary meeting. The Company will send the employee a letter advising them of the location and time of the meeting and the nature of the complaint against the employee. The employee will also be reminded of their right to be accompanied (see below). If dismissal is a potential outcome of the procedure, this will also be confirmed in writing.

The employee and their companion should make every effort to attend the meeting. The employee should inform those dealing with the matter of any difficulties in respect of attendance, on both their and their companion's parts, as soon as possible. If the employee is unable or unwilling to attend the

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disciplinary meeting without good cause the Company reserves the right to make a decision in their absence on the evidence available.

Right to be accompanied

- The employee has the right to be accompanied at any dismissal or disciplinary meeting (which includes any hearing or appeal hearing) by a companion of their choice (unless the request is unreasonable) who is either:

a) A work colleague; or

b) A full time official employed by a trade union; or

c) A lay official, provided they have been certified in writing by their union as having experience of, or as having received training in, acting as a worker's companion at disciplinary or grievance hearings.

- Solicitors and other external legal advisors are not permitted as employee companions.
- In making their choice, employees should bear in mind that it may not be appropriate to insist on being accompanied by a colleague whose presence might prejudice the hearing or who might have a conflict of interest.
- There is no duty on a fellow worker to accept a request to accompany an employee and no pressure should be brought to bear on a person if they do not wish to act as a representative.
- It is the employee's decision as to whether or not they choose to have a companion accompany them.
- The employee will need to inform the Company in advance who their chosen companion is.

The role of an employee's companion at a disciplinary meeting

An employee's companion may:

- address the hearing
- make submissions on behalf of the employee
- ask questions of the line manager hearing the disciplinary or any witnesses called to the meeting
- call for the production of any relevant documentation
- confer with the employee
- summarise the employee's case or make any final submissions at the end of the hearing before a decision is made

An employee's representative is not allowed to:

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- answer questions put to the employee
- talk to the line manager hearing the disciplinary/grievance in confidence
- disrupt the hearing.

Meeting and Outcome

At the meeting the employee and their companion will be given the opportunity to state the employee's case before any decision is made. Usually there will be an adjournment before a decision is made concerning the outcome of the meeting.

Where it is decided that further action will be taken, this may include:

a) Dismissal or

b) Action short of dismissal usually entailing a change in the employee's working arrangements or

c) Any type of disciplinary sanction appropriate in all the circumstances of the disciplinary case.

General principles for disciplinary matters are set out in Appendix B.

After the meeting the employee will be informed in writing of the outcome of the meeting and notified of their right to appeal against that decision. If the decision is dismissal, the employee will be informed of the reasons, the date on which their employment contract will end, and the period of notice applicable.

Appeals

An employee has the right to appeal against any disciplinary sanction imposed by informing the Human Resource Department in writing within 5 working days of the outcome of the meeting being confirmed to the employee in writing.

All appeals must set out in writing the grounds on which the employee is making the appeal.

The employee will be asked to attend an appeal hearing and will be notified that they have the right to be accompanied. The Company will wherever possible appoint someone to hear the appeal who is more senior than the person who took the disciplinary decision.

The person appointed by the Company will endeavour to hear any appeal without unreasonable delay. The appeal hearing will reconsider the original decision. The employee or their companion will have the opportunity to put forward new evidence which was not available during the first meeting or challenge the original decision.

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The outcome of any appeal will be confirmed to the employee in writing. The decision of the person appointed by the Company to hear the appeal is final. There is no further right of appeal.

Records

Disciplinary records for all employees shall be given to the HR department by the disciplining manager and held in line with the Data Protection Act.

Appendix A

Gross Misconduct

The following list provides examples of conduct which is usually regarded as gross misconduct. This list is given by way of example and is not exhaustive:

- Theft, fraud, dishonesty, deliberate falsification of records
- Fighting, assault on another person, bullying, harassment, victimization or discrimination
- Deliberate damage to Company property
- Unauthorized absence
- Being concerned or interested in action which is damaging or anti-competitive to the business of the Company
- Attending work under the influence of alcohol or non-medically prescribed drugs
- Possession of non-medically prescribed drugs while on Company premises
- Serious negligence which causes unacceptable loss, damage or injury
- Serious neglect of duties
- Deliberately accessing internet sites containing pornographic, offensive or obscene material
- Serious insubordination
- Unauthorized use or disclosure of confidential information
- Sleeping on duty
- Breach of statutory or regulatory requirements or health and safety rules, which endangers the health and safety of others
- Conviction for any serious criminal offence
- Conviction for any criminal offence which may affect the employee's ability to perform their job while an employee of the Company
- Rudeness to customers or suppliers, or bringing the Company into serious disrepute
- Accepting or offering a bribe or other secret payment, or otherwise breaching Company rules concerning bribery and corruption

Appendix B

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Guidance on Sanctions and Outcomes

Disciplinary Sanctions

Minor faults will usually be dealt with informally but where the matter is more serious the following procedure and sanctions will usually apply. Any disciplinary action taken may trigger a notification to the FCA and will feed into appraisals. In determining if an individual case is notifiable, an assessment will be made as to whether any disciplinary action taken relates to a breach of the Conduct Rules. We may be required to provide a regulatory reference in respect of employees when they leave the firm, which may contain this information.

Verbal warning

If the employees conduct or performance does not meet acceptable standards, they will be given an improvement note, together with the reason for it, the improvement that is required and the timescale and any help that may be given. It will warn that it constitutes the first stage of the formal procedure and further action will be considered, and could ultimately lead to dismissal, if there is further misconduct or no satisfactory improvement during the required timescales.

The verbal warning will be placed on the employee's personnel file and will usually remain current for disciplinary purposes for a period of 6 months. It will then be considered spent subject to achievement and sustainment of satisfactory conduct or performance.

Written warning

If the employees conduct or performance does not improve in line with the acceptable standards, they will be given a formal written warning, together with the reason for it, the improvement that is required and the timescale and any help that may be given. It will warn that further action will be considered, and could ultimately lead to dismissal, if there is further misconduct or no satisfactory improvement during the required timescales.

The written warning will be placed on the employee's personnel file and will usually remain current for disciplinary purposes for a period of 12 months. It will then be considered spent subject to achievement and sustainment of satisfactory conduct or performance.

Final written warning

If there is a further offence, or a continuing failure to improve conduct or performance within the set period, or if the conduct or unsatisfactory performance is sufficiently serious, the employee will usually be given a final written warning, together with the reason for it. It will warn that dismissal will result if there is a continued failure to comply with the request for improved conduct or performance during the required timescales.

The final written warning will be placed on the employee's personnel file and will usually remain current for disciplinary purposes for a period of 12 months (in exceptional cases the period may be longer). It will then be considered spent subject to achievement and sustainment of satisfactory conduct or performance.

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Dismissal

In the event of any further misconduct or failure to achieve satisfactory standards within the set period, or if the conduct is sufficiently serious, dismissal will usually result. All proposals for dismissals must be approved by the Head of HR or their deputy prior to the decision being finalized.

As soon as reasonably practicable after the disciplinary meeting, the employee will be provided with written reasons for the dismissal and the date on which their employment will terminate.

Summary Dismissal for Gross Misconduct

If on completion of the Procedure the Company is satisfied that the employees conduct has amounted to gross misconduct, the employee will usually be dismissed without notice or payment in lieu of notice.

The employee may appeal against any of these sanctions.

Principles for Disciplinary matters

The employee will not usually be dismissed for a first breach of discipline except in the case of gross misconduct when the sanction will be dismissal without notice or payment in lieu of notice.

Any of the disciplinary sanctions outlined above may be imposed by the Company at any stage if the employee's alleged misconduct or performance warrants such action, and the Company is not bound to impose disciplinary sanctions in any sequential order.

The employee will be advised of the steps they are required to take to remedy any unsatisfactory behaviour or performance, together with a time period for improvement.

If the employee's standard of work or conduct is unsatisfactory and, after warnings, remains below the level which is acceptable, the employee may be dismissed.

Warnings will cease to be current after the specified period of satisfactory conduct or performance, and will usually then be disregarded for disciplinary purposes. In exceptional circumstances, however, the Company may take into account an employee's "expired" warning where there is evidence of abuse (such as unsatisfactory conduct or performance soon after the expiry of a warning) or a pattern emerges. The expired warning will not be treated as if it were still current, but may be borne in mind for example when determining the length of a subsequent warning, or in deciding not to impose a lesser disciplinary sanction for subsequent offences.

Periods of absence while a warning is current will not usually count towards the length of a warning. In other words, the warning will be effectively extended by the length of any absence which occurs while it is still current.

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Actions other than Dismissal or Warnings which may also be considered

Depending on the nature of the case, the Company reserves the right to take action in addition to or as an alternative to warnings, or as an alternative to dismissal, both in disciplinary cases and in cases not involving disciplinary matters. This will normally be a change in working arrangements. Examples of action which may be taken in appropriate cases are:

a) Reallocation of duties

b) Transfer to a different type of work or department

c) Change in working hours

d) Demotion

e) Reduction or recovery of remuneration (claw back)

These may either be temporary or (where appropriate) permanent changes depending on the overall circumstances under consideration.

The employee may appeal against any such action.

- Table of Penalties (in the Form section) is indicative and not exhaustive in nature and serve as a guideline.
- This guidance is subject to local law and may be changed from time to time at the discretion of the management.
- This guidance should be applied, and decisions may be taken after careful consideration of facts and circumstances of individual cases and in consultation with the Legal Team.
- Any other Disciplinary Incident/ Security Breach or other violation not listed in the attached list (in the Form section) will be evaluated for its seriousness and impact for appropriate disciplinary action.
- Any exception to these offences will have to be approved by CHRO only.

Process

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Risks
Email risk@hcl.com
for risks

Information Violation
Email infosecincidents@hcl.com
to report any information violation

Compliance-related issue
Email compliance-officer@hcl.com
for compliance-related issues

Personnel
Report to the immediate manager, HR official, or Enquiry Officer of the respective geography.
Contact the L4 delivery/enabling function head of the respective entity

The Company upholds the highest standards of fairness, transparency, professionalism, honesty, integrity, and ethical behavior in all its dealings.

Employees are expected to address any violations of company policies and procedures promptly. The Company fully ensures the confidentiality of reporting employees possible, in line with legal obligations, and conducts thorough investigations of reported violations.

While verbal reporting is accepted, written complaints with supporting evidence are advised. The Company ensures confidentiality of reporting employees to the fullest extent possible, in line with legal obligations, and conducts thorough investigations of reported violations.

Employees using channels such as **whistleblower@hcltech.com** and **secure@hcltech.com** (which have independent processes) will be governed by respective policies.

For further details, refer to:

MyHCLTech > Policies Hub > Policy for Prevention and Redressal of Sexual Harassment at Workplace (Secure) / Whistleblower Policy.

Consequences

Procedure for Decisions regarding Disciplinary Action

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- Upon receiving a complaint, reporting of incident, the Employee's manager or HR manager may share it with the designated Enquiry Officer, GIS Investigator of their respective region/geography based on the violation's seriousness.
- The Investigative Officer will conduct a preliminary inquiry and seek to resolve the matter through informal discussions with the Employee, potentially resulting in an informal verbal warning and an opportunity for the Employee to improve.
- During this stage, the Investigative Officer will explain the allegations to the Employee and allow them to respond, determining whether there is sufficient material for a domestic inquiry.
- The disciplinary process should generally allow the Employee a chance to address and rectify the issue, depending on its severity.
- Disciplinary action against the Employee must adhere to the principles of natural justice, ensuring that the Employee is informed of the charges, given an opportunity to respond and present witnesses, and that all findings are recorded appropriately.
- The GIS investigator will conduct a thorough investigation to the incident as per the specific SoP for Information Security Violation / Cybersecurity Disciplinary charter and prepare a formal report cum final decision basis severity of the incident.

The final decision may include one or more of the following actions, depending on the seriousness, severity of the issue and local laws:

- Close the issue without further action.
- Reprimand
- Verbal warning
- Written warning
- Probation
- Suspension
- Termination of employment in accordance with the law

Annexure

SOP for Information Security Incident Management as per Disciplinary Actions Charter- Version 1.pdf

PF_13933_Table of Penalties - Poland_Ver 2_July 2023.pdf

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PF_13933_Table of penalties_Israel_updated_Ver 2_July 2023.pdf

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PF_13933_Table of Penalties-Morocco_Ver 2_July 2023.pdf

PF_13933_Table of Penalties-Philippines_Ver 2_July 2023.pdf

Table of Penalties_India_Ver 6_Aug 2025.pdf

PF_14232_Table of Penalties_Techbee.xlsx

Revision History:

Version	From	To	Description	Author	Approved By
1	01 Apr 2014	31 May 2017	First Copy	HR Policy &Compliance CoE	HR Policy &Compliance CoE Head

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2	01 Jun 2017	09 Apr 2019	Revision	HR Policy &Compliance CoE	HR Policy &Compliance CoE Head
3	10 Apr 2019	31 May 2020	Revision	HR Policy &Compliance CoE	HR Policy &Compliance CoE Head
4	01 Jun 2020	17 Aug 2021	Revision	HR Policy &Compliance CoE	HR Policy &Compliance CoE Head
5	18 Aug 2021	28 Feb 2022	India Table of penalties revised	HR Policy &Compliance CoE	HR Policy &Compliance CoE Head
6	01 Mar 2022	30 Jun 2022	Table of penalties updated for Poland, Hungary, Luxembourg, Portugal, Romania, Spain, Sweden, Angola, Egypt, Israel, South Africa, Switzerland	HR Policy &Compliance CoE	HR Policy &Compliance CoE Head
7	01 Jul 2022	14 Jun 2023	Policy extended to Fonterra Rebadged	HR Policy &Compliance CoE	HR Policy &Compliance CoE Head
8	15 Jun 2023	30 Jun 2023	New channel of grievance reporting -Global Ethics Helpline has been updated in the policy	HR Policy &Compliance CoE	HR Policy &Compliance CoE Head
9	01 Jul 2023	17 Mar 2024	Updated Version of Table of penalties were uploaded with Violation (Clause K) and consequences amendments regarding Fraudulent/forged document/information	HR Policy &Compliance CoE	HR Policy &Compliance CoE Head
10	18 Mar 2024	31 Mar 2024	Table of Penalties _Tech Bees has been added under annexure section	HR Policy &Compliance CoE	HR Policy &Compliance CoE Head

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Annexure

Version	From	To	Description	Author	Approved By
1	01 Sep 2016	31 Aug 2023	First Copy	HR Policy &Compliance CoE	HR Policy &Compliance CoE Head
2	01 Sep 2023	-	Revision	HR Policy &Compliance CoE	HR Policy &Compliance CoE Head

Annexure

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1	09 Nov 2020	28 Feb 2022	First Copy	HR Policy &Compliance CoE	HR Policy &Compliance CoE Head
2	01 Mar 2022	30 Jun 2023	Revision	HR Policy &Compliance CoE	HR Policy &Compliance CoE Head
3	01 Jul 2023	-	Revision	HR Policy &Compliance CoE	HR Policy &Compliance CoE Head

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Glossary

Term	Definition
COBEC	Code of Business Ethics and Conduct
ABAC	Anti-Bribery and Anti-Corruption Policy
BGEP	Business Gift Entertainment Policy
Enquiry Officer	An individual appointed by HCL Technologies Ltd. to conduct investigations into workplace inquiries, grievances, or disciplinary matters.
DAC	Disciplinary Actions Committee
DLP	Data Loss/ Leakage Prevention
CDC	Cyber Defence Center
GIS	Global Information Security

Glossary

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Misconduct	Examples include general misbehavior, misconduct, poor attendance and poor job performance
Gross Misconduct	Serious misbehavior or conduct (see Appendix 1)
Investigating Manager	The line manager (or more senior manager) who will carry out any investigatory interviews
Disciplining Manager	The manager (or more senior manager) who will conduct the disciplinary hearing
Companion	A work colleague where there is no conflict of interest or an official employed by a trade union or a certified lay official
ACAS	The Advisory, Conciliation and Arbitration Services (ACAS) is a publicly funded agency that provides advice to both employers and employees on industrial relations issues.
FCA	The Financial Conduct Authority is a financial regulatory body which ensures that the relevant markets function well.
SMCR	The aim of the Senior Managers and Certification Regime is to reduce harm to consumers and strengthen market integrity by making individuals more accountable for their conduct and competence.
Conduct Rules	These are basic standards of behavior that apply to all individuals performing financial services activities in firms. Any breaches of these rules need to be reported to the FCA annually and within 7 days if the person is a Senior Manager.

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Glossary

In these terms following definitions shall apply, unless stated otherwise:

"Company" refers to HCL TECHNOLOGIES UK Ltd.

"Employee" refers to a person who is on the payrolls of the Company including but not limited to permanent/ part-time/fixed term/ expatriates working on work visa issued by appropriate authority, if any;

"HR"refers to HR Employee Partner of the Employee / Geo HR for that respective geography;

"L1 Head"refers to any other employee of the Company or its affiliates who is authorized by the management to head a line of business;

"L2 Head" refers to any other employee of the Company or its subsidiaries who is authorized by the management to head business unit(s), within a particular line of business;

"L3 Head" refers to any other employee of the Company or its subsidiaries who is authorized by the management to head business unit(s), under the supervision of L2 Head (if any), within a particular line of business;

"L4 Head" refers to any other employee of the Company or its subsidiaries who is authorized by the management to head a one of the business unit within a particular line of business;

"Reporting Manager/Line manager" shall mean any other Employee of the Company or its affiliated Companies, who by nature of his duties, exercises authority or supervision or control over an Employee during his employment.

"Warning letter" refers to the letter to warn the employee regarding future consequences of disciplinary action.

"Dismissal" shall mean Termination of employment.

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Keywords

Misconduct, Negligence, Insubordination, Violation, Disciplinary, secure, Governance, harassment, Ethics, help, whistle blower, Code, Conduct, Whistle, sexual, diversity, sexual harassment, Policy, Corporate Governance

Keywords

Disability Discrimination Policy

Keywords

Disciplinary Policy

Disclaimers

The company reserves the right to alter, append or withdraw this policy either in part or in full based on management's discretion along with Unions or Work Council approval/discussions (as applicable). All procedures as per the law of land to be adhered to prior to policy launch.

Disclaimers

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Policy History

Modified Date	Version No.	From	To	Reason for creation / updation	Author	Approved by
15 Nov, 2024	1	1 Apr, 2024	10 Nov, 2024	New Launch on Policy Studio	Ruchi Smita Khandai(Ent HR-I&C-I&C-Policy-Policy)	Srinivasan Govindan(Ent HR-I&C-I&C-Policy-Policy)
8 Aug, 2025	2	11 Nov, 2024	7 Aug, 2025	Table of Penalties for India updated	Ruchi Smita Khandai(Ent HR-I&C-I&C-Policy-Policy)	Srinivasan Govindan(Ent HR-I&C-I&C-Policy-Policy)
8 Aug, 2025	2	11 Nov, 2024	7 Aug, 2025	Table of Penalties for India updated	Ruchi Smita Khandai(Ent HR-I&C-I&C-Policy-Policy)	Srinivasan Govindan(Ent HR-I&C-I&C-Policy-Policy)
8 Aug, 2025	3	8 Aug, 2025		1. Zero tolerance/Misconduct section has been updated under Table of penalties - India 2. Misconducts related to changing work location and completion of mandatory trainings under Misconduct section. 3. Addition of violations related to theft/compromise, deepfakes, social engineering and loss of reputational goodwill to HCLTech under Exhibit B. 4. SOP related to Standard Operating Procedure for Information Security Incident Management as per Disciplinary Actions Charter has been	Ruchi Smita Khandai(Ent HR-I&C-I&C-Policy-Policy)	Srinivasan Govindan(Ent HR-I&C-I&C-Policy-Policy)

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Modified Date	Version No.	From	To	Reason for creation / updation	Author	Approved by
				attached under annexure section		

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